

We audit your activity conducted under a [Food Import Compliance Agreement \(FICA\)](#). Audits assess that you are meeting the conditions of your FICA.

Fees

Audit fees are outlined in our [charging guidelines](#).

Audit types

We conduct 3 types of audits.

Pre-approval audit

We perform a pre-approval audit before entering into a FICA with you. We verify if your documented food safety and compliance system complies with the imported food legislation and FICA requirements.

Scheduled audit

A condition of your FICA is to undergo an audit at least every year. We may increase your audit schedule if we find you have not complied with your FICA.

Probation audit

You will undergo probation audits:

- after we approve your new compliance agreement
- if you fail a scheduled audit.

Schedule

Once you enter into a FICA, you will undergo 2 probation audits within 180 days. This is from the day we approve your FICA.

When you pass consecutive probation audits, we schedule an audit once a year. We may schedule more based on your previous audit performance.

If you fail an audit, the probationary audit rate starts from the date of the failed audit.

You will stay on the probation audit rate until you pass 2 consecutive audits.

Audit outcomes

During the audit exit meeting, we provide details of all noncompliances and advisory findings.

Whether you pass or fail an audit depends on the number and type of noncompliances.

There are 3 types of noncompliance.

Critical

A noncompliance that results, or is likely to result, in releasing or distributing food that poses a risk to human health.

If we detect any critical noncompliance, you will fail your audit. We may also consider suspending or cancelling your FICA.

Major

A noncompliance that may result in:

- the failure to identify food that does not comply with the Australia New Zealand Food Standards Code, or
- distributing food that is known to be noncompliant.

If we detect 3 or more major noncompliances, you will fail your audit. You will return to the probation audit rate until we find you compliant.

Minor

A noncompliance unlikely to result in the distribution of noncompliant food.

If we detect 7 or more minor noncompliances, you will fail your audit. You will return to the probation audit rate until we find you compliant.

Both major and minor

You will fail your audit if we detect more than:

- 2 major and 3 minor noncompliances, or
- 1 major and 4 minor noncompliances.

You will return to the probation audit rate until we find you compliant.

Advisory findings

During a pre-approval audit, we may identify things that could improve your documented food management system.

It is not mandatory to respond to these findings.

Correcting your noncompliance

Noncompliance can be detected in various ways, including but not limited to:

- Audit
- Surveillance
- Compliance and investigation monitoring activities
- Referral by a third party.

If we find any instances of noncompliance, you must let us know:

- how you propose to rectify the issue
- what preventative measures you will put in place to stop it from happening again.

You must submit evidence to support the action you have taken.

If we consider your response is satisfactory, we will finalise the matter.

If you fail to correct your noncompliance within the agreed timeframes, we may take further action. We may choose to suspend your agreement.

Where noncompliance is detected outside of an audit, it will be brought to the attention of the FICA importer in writing and will contain details of the detected noncompliance. This outcome may result in an increased audit rate.

Review of audit

All noncompliances and advisory findings will be provided. If you disagree with the reported detail, you can contact us in writing (email preferred) to review your concerns, within 10 business days from your audit.

Address your concerns to:

Director
Imported Food section
Department of Agriculture, Fisheries and Forestry

Email: fica@aff.gov.au

Postal address:
GPO Box 858
Canberra ACT 2601

Phone: 1800 900 090